

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

GITI TIRE (USA) LTD., *Complainant*

v.

FLEXPORT INTERNATIONAL LLC, *Respondent*.

DOCKET NO. 24-22

Served: September 18, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER DENYING MOTION TO DISMISS

On June 14, 2024, Respondent Flexport International LLC (“Flexport”) filed a Motion to Dismiss the Complaint (“Motion”) seeking dismissal of the Complaint because Complainant fails to plead sufficient facts, fails to allege practices in violation of the Shipping Act, and fails to identify any affected shipment, bill of lading, invoice or charge in support of its claims. Motion at 1-2.

On July 1, 2024, Complainant Giti Tire (USA) Ltd. (“Giti”) filed an Opposition to Respondent’s Motion to Dismiss the Complaint (“Opposition”). As part of the Opposition, Complainant requested leave to amend the Complaint if deemed necessary by the Commission. Opposition at 9-10. In response, Respondent filed a Memorandum in Further Support of Its Motion to Dismiss Complaint (“Reply”) on July 8, 2024.

On August 27, 2024, the undersigned issued an Order Deferring Motion to Dismiss requiring Giti to file an amended complaint and deferring ruling on the motion to dismiss pending receipt of the amended complaint. On September 9, 2024, Giti filed an amended complaint.

The Amended Complaint addresses the issues raised in the Order Deferring Motion to Dismiss. Accordingly, it is **ORDERED** that Respondent Flexport International LLC’s Motion to Dismiss be **DENIED AS MOOT. It is**

FURTHERED ORDERED that Respondent Flexport International LLC file an Answer to the Amended Complaint by September 30, 2024.



Linda S. Harris Crovella
Administrative Law Judge